

24STCV31877 24STCV31877

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-03

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Case Number: 24STCV31877 Hearing Date: August 3, 2026 Dept: 512

HEARING DATE: Mon., August 3, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Abdurrahim

v. Huntaway Midstream West, COMP.

FILED: 12-04-24

LLC

CASE NUMBER: 24STCV31877

NOTICE:

OK

PROCEEDINGS: MOTION TO BE RELIEVED AS COUNSEL

MOVING PARTY: Counsel

Travis M. Gemoet of Jeffer Mangels & Mitchell LLP

RESP. PARTY: None

MOTION TO BE RELIEVED AS COUNSEL

(CCP § 284, CRC, rule 3.162)

TENTATIVE RULING:

Counsel Travis M. Gemoet of

Jeffer Mangels & Mitchell LLP's unopposed Motion to be Relieved as Counsel for Defendant Huntaway

Midstream West, LLC is CONTINUED

to September 14, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior

to the next scheduled hearing, Counsel is to file and serve proper proof of service and notice of hearing of the Motion and supplemental papers addressing the deficiencies noted herein.

Defendant's Counsel is ordered to give notice.

OPPOSITION: None

filed as of July 28, 2026 [] Late [X]

None

REPLY: None

filed as of July 28, 2026 []

Late [X] None

ANALYSIS:

I.

Background

On December 4, 2024, Plaintiff

Kameelah Abdurrahim, as an aggrieved employee and on behalf of all other aggrieved employees, filed a Complaint Under the Labor Code Private Attorneys' General Act of 2004 against Defendant Huntaway Midstream West, LLC ("Defendant") and Does 1-100.

On May 5, 2025, Defendant filed an Answer.

On March 24, 2026, Plaintiff filed a Substitution of Attorney form.

On June 11, 2026,

Defendant's counsel Travis M. Gemoets of Jeffer Mangels & Mitchell LLP ("Counsel") filed and served the instant Motion to be Relieved as Counsel for Defendant

and accompanying declaration (the “Motion”).

On July 13,
2026, Counsel filed a Proposed Order in support of the Motion.

No Opposition
has been filed.

II.
Legal
Standard

Code
of Civil Procedure section 284 states that “the attorney in an action...may be
changed at any time before or after judgment or final determination, as
follows: (1) Upon the consent of both client and attorney...; (2) Upon the order
of the court, upon the application of either client or attorney, after notice
from one to the other.” (Code Civ. Proc., § 284; Cal. Rules of Court, rule
3.1362.) “The determination whether to
grant or deny a motion to withdraw as counsel lies within the sound discretion
of the trial court.” (Manfredi & Levine v. Superior Court (1998) 66
Cal.App.4th 1128, 1133); see Lempert v. Superior Court (2003) 112
Cal.App.4th 1161, 1173.)

An application
to be relieved as counsel must be made on Judicial Counsel Forms MC-051 (Notice
of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal.
Rules of Court, rule 3.1362, subds. (a), (c), (e).)

In addition,
California Rules of Court, rule 3.1362 subsection (d) requires that the notice
of motion and motion, declaration, and proposed order be served on the client
and all other parties who have appeared in the case by personal service,
electronic service, or mail. If the notice is served by electronic service, it
must be accompanied by a declaration stating that the electronic service
address is the client’s current electronic service address. (Cal. Rules of
Court, rule 3.1362, subd. (d)(2).) As used in this rule, “current” means:

“[T]he address
was confirmed within 30 days before the filing of the motion to be relieved.

Merely

demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current."

(Cal. Rules of
Court, rule 3.1362, subd. (d).)

III.
Discussion

On June 11 and July
13, 2026, Counsel moved the
Court to be relieved as attorney of record for Defendant. (MC-051.) Counsel
filed MC-051, MC-052, and MC-053 Forms. (Cal. Rules of Court, rule
3.1362, subds. (a), (c), (e).)

Counsel seeks to
be relieved due to Client's failure to pay legal fees for services rendered by
Jeffer Mangels & Mitchell LLP ("JMM"). On May 20, 2026, I emailed
Client's representative Gianni Santi, requesting the names of substitute counsel
and advising that the Hon. Samantha P. Jessner in Dept. 7 of the Superior Court
of California, County of Los Angeles, instructed counsel to file Motions to be
Relieved as Counsel in cases related to the instant case, 23STCV31910 and
24STCV24435, by June 1, 2026 if no substitute counsel was identified, which
counsel did. On May 21, 2026, JMM partner Michael A. Gold left a voicemail for
Mr. Santi and sent a text message regarding the outstanding fees and the need
to communicate about Client's legal matters. On May 21, 2026 JMM issued a
Reminder Statement to Client reflecting a total outstanding balance of
\$60,768.34 in unpaid legal fees for services rendered back to July 2025. On May
27, 2026 Gold sent a formal written notice to Mr. Santi again noting Client's
failure to communicate and failure to pay fees. Counsel cannot competently and
diligently represent Client when Client refuses to pay for legal services
rendered. Client's conduct breaches its engagement agreement with JMM.

(MC-052, ¶ 2.)

Counsel seeks to be relieved under the
permissive grounds of California Rules of Professional Conduct, rule 1.16,

subdivision (b)(5), which states a lawyer may withdraw from representing a client if “the client breaches a material term of an agreement with, or obligation, to the lawyer relating to the representation, and the lawyer has given the client a reasonable* warning after the breach that the lawyer will withdraw unless the client fulfills the agreement or performs the obligation.”

However, Counsel fails to adequately state in the Motion’s declaration whether Counsel gave Defendant a reasonable warning after the breach that Counsel will withdraw unless Defendant pays for legal fees. While the declaration states that Counsel provided such notice in other cases from this one and that Counsel gave Defendant notice of outstanding bills, the Court finds these statements differ from the specific requirements of Rules of Professional Conduct, rule 1.16, subdivision (b)(5) and are thus insufficient.

Additionally, ¶ 5 of the Motion and ¶ 8 of the Proposed Order fail to list the instant hearing as an additional hearing date or proceeding in the action. As well, the Proposed Order does not reflect the accurate upcoming hearing dates.

For all the above reasons, the Motion is CONTINUED to allow Counsel an opportunity to address the deficiencies noted herein.

IV.

Conclusion & Order

Accordingly, Counsel Travis M. Gemoet of Jeffer Mangels & Mitchell LLP’s unopposed Motion to be Relieved as Counsel for Defendant Huntaway Midstream West, LLC is CONTINUED to September 14, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior to the next scheduled hearing, Counsel is to file and serve proper proof of service and notice of hearing of the Motion and supplemental papers addressing the deficiencies noted herein, including MCMC-053 form.

Defendant’s Counsel is ordered to give notice.